

Opinion of the Court

govern whether petitioner enjoys immunity from suit, the Court of Appeals remanded the case for further proceedings, including a determination of whether petitioner is entitled to immunity under the common law. *Id.*, at 383–384. We granted certiorari. 557 U. S. 965 (2009).

II

The doctrine of foreign sovereign immunity developed as a matter of common law long before the FSIA was enacted in 1976. In *Verlinden B. V. v. Central Bank of Nigeria*, 461 U. S. 480, 486 (1983), we explained that in *Schooner Exchange v. McFaddon*, 7 Cranch 116 (1812), “Chief Justice Marshall concluded that . . . the United States had impliedly waived jurisdiction over certain activities of foreign sovereigns.” The Court’s specific holding in *Schooner Exchange* was that a federal court lacked jurisdiction over “a national armed vessel . . . of the emperor of France,” *id.*, at 146, but the opinion was interpreted as extending virtually absolute immunity to foreign sovereigns as “a matter of grace and comity,” *Verlinden*, 461 U. S., at 486.

Following *Schooner Exchange*, a two-step procedure developed for resolving a foreign state’s claim of sovereign immunity, typically asserted on behalf of seized vessels. See, e. g., *Republic of Mexico v. Hoffman*, 324 U. S. 30, 34–36 (1945); *Ex parte Peru*, 318 U. S. 578, 587–589 (1943); *Compania Espanola de Navegacion Maritima, S. A. v. The Navemar*, 303 U. S. 68, 74–75 (1938). Under that procedure, the diplomatic representative of the sovereign could request a “suggestion of immunity” from the State Department. *Ex parte Peru*, 318 U. S., at 581. If the request was granted, the district court surrendered its jurisdiction. *Id.*, at 588; see also *Hoffman*, 324 U. S., at 34. But “in the absence of recognition of the immunity by the Department of State,” a district court “had authority to decide for itself whether all the requisites for such immunity existed.” *Ex parte Peru*, 318 U. S., at 587; see also *Compania Espanola*, 303 U. S., at 75 (approving judicial inquiry into sov-